



CHAPTER xxxiv.

An Act for conferring further powers on the Great Eastern Railway Company for enabling the Great Northern and Great Eastern Joint Committee to acquire additional lands for extending the periods limited for the completion of works by the Company the Hertfordshire County Council and the Epping Rural District Council and for the purchase of lands by the Company and for other purposes.

A.D. 1905.

[30th June 1905.]

WHEREAS it is expedient that the Great Eastern Railway Company (in this Act called "the Company") be authorised to convert into an embankment a portion of the existing viaduct on their Northern and Eastern Railway near Bishop's Stortford Station to construct the weir reservoir and line of pipes and to purchase the additional lands hereinafter described and to exercise the other powers in this Act specified:

And whereas it is expedient that the Great Northern and Great Eastern Joint Committee (in this Act called "the Joint Committee") constituted under the powers of the Great Northern and Great Eastern Railway Companies Act 1879 be authorised to purchase the additional lands hereinafter described for the purposes of their joint undertaking:

And whereas it is expedient that the respective times limited for the compulsory purchase by the Company of lands for and for the completion of certain works authorised by section 4 of the Great Eastern Railway (General Powers) Act 1900, (in this Act called "the Act of 1900") be extended as by this Act provided:

A.D. 1905.

And whereas by section 7 of the Act of 1900 an agreement entered into between the county council of the administrative county of Hertford (in this Act called "the Hertfordshire County Council") of the first part the rural district council of Epping (in this Act called "the district council") of the second part Horace James Smith-Bosanquet of the third part Ralph Charlton Palmer and Archdale Villiers Palmer of the fourth part and the Company of the fifth part for the construction of certain roads at or near the Company's Broxbourne Station was sanctioned and confirmed and for giving effect to the said agreement the Company and the Hertfordshire County Council and the district council (which councils together are in this Act referred to as "the two councils") were respectively empowered to make the public carriage roads in the parishes of Broxbourne and Nazeing in the said section described and by section 17 of the Act of 1900 the Hertfordshire County Council were required subject to the consent of the owner of the land that might be required for the purpose within a period of two years after the passing of the said Act to divert the existing occupation road at Broxbourne described in the said section 17 which contained provisions for the diverted occupation road being deemed to be a main road and as such being vested in the said county council and for the closing as a highway of the existing portion of the road so diverted:

And whereas it is expedient that the period limited for the completion by the Company and the two councils of the works authorised by the said section 7 of the Act of 1900 which was limited by that Act to five years from the passing thereof should be extended as by this Act provided and that the time within which the obligation imposed upon the Hertfordshire County Council by section 17 of the Act of 1900 should be fulfilled should also be extended:-

And whereas by the Great Eastern Railway Act 1881 (in this Act called "the Act of 1881") the Company were authorised to construct certain tramways in and between the town of Wisbech and the villages of Outwell and Upwell in the Isle of Ely in the county of Cambridge and in the county of Norfolk and the Company were empowered to work such tramways by locomotive engines or other mechanical power:

And whereas the said tramways have been constructed and are being worked by the Company and it is expedient that certain provisions of the Act of 1881 relating thereto should

be repealed and that other provisions should be enacted as in A.D. 1905.
this Act contained in lieu thereof:

And whereas plans and sections showing the lines situations and levels of the works by this Act authorised to be constructed and plans of the lands authorised to be taken acquired and held under the powers of this Act and books of reference to such plans respectively containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands respectively were duly deposited as follows (that is to say):—

As regards the embankment and lands in the county of Hertford with the clerk of the peace for that county;

As regards lands in the county of London with the clerk of the peace for that county;

As regards lands in the county of Middlesex with the clerk of the peace for that county;

As regards lands and works in the county of Essex with the clerk of the peace for that county;

As regards lands in the county of Suffolk with the clerk of the peace for the eastern division of that county; and

As regards lands in the county of Huntingdon with the clerk of the peace for that county;

and the said plans sections and books of reference respectively are in this Act referred to as “the deposited plans sections and books of reference”:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Great Eastern Railway Short title.
Act 1905.

2. The following enactments (as far as they are applicable off the purposes of and are not inconsistent with or expressly varied by this Act) are hereby incorporated with and shall be part of this Act (that is to say):—

The Lands Clauses Acts;

The Railways Clauses Consolidation Act 1845; and

Incorporation of general enactments.

A.D. 1905.

Parts I. and II. of the Railways Clauses Act 1863 relating respectively to construction of a railway and to extension of time.

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction and the expression "the tramways" means the tramways authorised by the Act of 1881.

Interpretation of term "parish clerks" &c.

4. The expressions "parish clerks" and "clerks of the several parishes" in section 7 of the Railways Clauses Consolidation Act 1845 shall as regards the administrative county of London mean the town clerks of the metropolitan boroughs.

Conversion of viaduct into embankment.

5. Subject to the provisions of this Act the Company may in the line or situation and within the limits of lateral deviation shown on the deposited plans and according to the levels shown on the deposited sections convert into solid embankment the portion of the existing viaduct on the Company's Northern and Eastern Railway near Bishop's Stortford Station which lies between points respectively situate thirty-four yards and one hundred and three yards or thereabouts southward of the northern end of the bridge carrying that railway over the Stort Navigation known as the Black Bridge and may lay down and maintain all such rails junctions sidings and works as may be necessary or convenient in that behalf and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for those purposes.

For protection of Hertfordshire County Council.

6.—(1) Notwithstanding anything in this Act contained or shown upon the deposited plans the Company shall in converting the portion of the viaduct on the Company's Northern and Eastern Railway near Bishop's Stortford Station as described in the section of this Act whereof the marginal note is "Conversion of viaduct into embankment" construct and maintain a bridge to carry the railway and works of the Company over the old River Stort by one span and so as to provide a waterway throughout of a width of not less than twenty-five feet in the clear and no part of the underside of such bridge shall be lower than one hundred and eighty-four decimal seventy-five feet above Ordnance datum.

(2) Nothing in this Act shall authorise the Company in any way to obstruct or interfere with the Stort Navigation or (except

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as by this Act expressly provided) with the natural flow of the River Stort or the drainage of the valley of that river. A.D. 1905.

(3) In case of difference between the Company and the Hertfordshire County Council arising under or out of this section or anything done or omitted to be done in pursuance thereof it shall be referred to a single arbitrator who unless agreed upon by the parties shall be nominated by the president for the time being of the Institution of Civil Engineers.

7. No part of the embankment into which the existing viaduct of the Company's Northern and Eastern Railway, is under the powers of this Act converted shall without the consent of the Bishop's Stortford Urban District Council be constructed by the Company over the existing outfall sewer belonging to that council and situate in the property numbered on the deposited plans 3 in the parish of Thorley. For protection of Bishop's Stortford Urban District Council.

8. Subject to the provisions of this Act the Company may make and maintain in the lines or situations and within the limits of lateral deviation shown on the deposited plans and according to the levels shown on the deposited sections the following works in the parish of Wickford in the rural district of Billericay in the county of Essex (that is to say):— Power to construct weir &c.

(A) A weir across the River Crouch immediately to the southward of the bridge or culvert which carries that river under the Southend Railway of the Company near and to the south-eastward of the Wickford Station thereon;

(B) A reservoir to be situate on the property numbered on the Ordnance map (scale $\frac{1}{2500}$ second edition 1896) 42 in the said parish together with a line of pipes commencing in the River Crouch at or about the site of the said weir and terminating in the said reservoir;

together with all necessary and convenient embankments sluices dams pipes pumps machinery works and apparatus connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for those purposes.

9. In constructing the works by this Act authorised the Company may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of Limits of deviation.

A.D. 1905. — deviation shown on those plans and may deviate vertically from the levels of the works as shown on the deposited sections to any extent not exceeding five feet upwards and ten feet downwards. Provided that nothing in this section shall authorise the Company to deviate from the line or levels of the embankment into which by this Act they are authorised to convert a portion of the existing viaduct on their Northern and Eastern Railway beyond the limits prescribed by the Railways Clauses Consolidation Act 1845.

Power to
take water
from River
Crouch.

10. The Company may by means of the pipes pumps and other works in connection therewith by this Act authorised divert water from the River Crouch and impound the same in the reservoir authorised by this Act and may use such water for the purposes of their undertaking.

Power to
Company to
acquire addi-
tional lands.

11. The Company in addition to the other lands which they are by this Act authorised to acquire may enter upon and take compulsorily or by agreement and may appropriate and use for the purposes of extending or affording access to their stations sidings warehouses buildings wharves depôts and other accommodation and for the general purposes of their undertaking all or any of the lands hereinafter described and delineated on the deposited plans and described in the deposited books of reference and any estates or interests in any such lands and may hold and use for all or any of the above-mentioned purposes such of the said lands as have already been purchased or acquired by them. Provided that the said lands so already purchased or acquired by the Company shall for the purposes of section 3 of the Housing of the Working Classes Act 1903 be deemed to have been acquired under the powers of this section. The lands above referred to and by this section authorised to be entered upon and taken appropriated and used are as follows:—

In the county of London—

Lands in the parish of Saint John at Hackney in the metropolitan borough of Hackney adjoining and on the north-easternmost side of the railway of the Company:

In the county of Middlesex—

(A) Lands in the parish and urban district of Enfield adjoining and on the north-easternmost side of the Enfield Town Station of the Company and lying to the southward of Southbury Road;

- (B) Lands in the parish and urban district of Enfield adjoining and on the north-easternmost side of the railway of the Company near the said Enfield Town Station: A.D. 1905.

In the county of Essex—

- (A) Lands in the parish and urban district of Walthamstow adjoining and on the western side of the Walthamstow and Chingford branch railway of the Company and lying between Forest Road and the carriage sidings of the Company at Wood Street Station;
- (B) Lands in the parish of Hornchurch in the rural district of Romford adjoining and on the south-eastern side of the Colchester main line of railway of the Company near and to the north-eastward of Harold Wood Station of the Company;
- (C) Lands partly in the parish of Hornchurch aforesaid and partly in the parish of Upminster in the said rural district of Romford adjoining and on the north-westernmost side of the said Colchester main line of the Company near and to the north-eastward of the bridge carrying the said railway over Harold Court Road;
- (D) Lands in the parish of Dedham in the rural district of Lexden and Winstree adjoining and on the south-easternmost side of the said Colchester main line of the Company:

And the Company may on the completion of the purchase of the said last-mentioned lands stop up and discontinue so much of the footpath leading from Bargates Lane Farm across the said railway and the property numbered on the Ordnance map (scale $\frac{1}{2500}$ second edition 1897) 662 in the said parish to Humberlands as is situate on the railway and property of the Company and the said property numbered 662:

In the county of Hertford—

Lands in the parish of Hoddesdon Urban in the urban district of Hoddesdon near the Rye House Station of the Company adjoining and on the westernmost side of the New River immediately to the south-eastward of the Rye road:

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In the county of Suffolk (Eastern Division)—

In the parish of Lowestoft in the borough of Lowestoft—

(A) Lands and buildings situate on the southern side of Commercial Road at and near its western end and lying between that road and the inner harbour of Lowestoft;

(B) Lands and buildings on the northern side of the said Commercial Road at and near its western end and lying between that road and the sidings of the Company.

For protection of Middlesex County Council.

12. If and when the Company shall acquire under the powers of this Act the land in the parish of Enfield which is shown by the colour red on a plan signed by John Wilson on behalf of the Company and by Charles Hayley Mason on behalf of the county council of Middlesex (in this section referred to respectively as “the signed plan” and “the said council”) and the said council shall serve upon the Company notice to treat for the purchase thereof the Company shall sell and convey the same to the said council and the said council shall pay to the Company such a proportionate part of the total cost to the Company of purchasing the land in the parish of Enfield which the Company may acquire under the powers of this Act as the land coloured red on the signed plan bears to the whole of the land so acquired by the Company together with the addition to such proportionate part of a moiety of the cost of acquiring the leasehold interest in the buildings or erections standing partly on the land numbered on the deposited plans 1 in the parish of Enfield. Provided that if the said council shall purchase the land coloured red on the signed plan before notice to treat for the purchase thereof shall have been served by the Company the Company if and when they acquire the remaining part of the said land numbered 1 shall repay to the said council a moiety of the cost incurred by the said council in acquiring the leasehold interest in the said buildings or erections.

Power to Joint Committee to acquire additional lands.

13. The Joint Committee may enter upon and take compulsorily or by agreement and may appropriate and use for the purposes of the undertaking vested in them the lands hereinafter described and delineated on the deposited plans and described in the deposited books of reference and any estates or interests in such lands (that is to say):—

Lands in the parish of Bluntisham-cum-Earith in the rural district of Saint Ives in the county of Huntingdon

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adjoining and on the south-eastern side of the Saint Ives and Somersham Railway and lying immediately to the southward of the Bluntisham Heath Road. A.D. 1905. —

14. The powers of the Company and of the Joint Committee respectively for the compulsory purchase of lands under this Act shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

15. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company or to the Joint Committee any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Power to take easements &c. by agreement.

16. All public rights of way (if any) over or affecting the footpath authorised to be stopped up under the powers of this Act are by this Act extinguished as from the time of such stopping up. Extinguishing rights of way.

17. The site and soil of so much as under the powers of this Act the Company shall stop up and discontinue for traffic of the said footpath are by this Act vested as to so much thereof as is bounded on both sides by land of the Company in the Company and as to so much thereof as is bounded on both sides by land of any other person in such other person and as to so much thereof as is bounded on opposite sides by lands belonging to different persons in such owners respectively to the centre of the footpath in proportion to the respective frontages of their lands thereto freed and discharged from all public rights of way over the same. The provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near the railway shall apply to the lands so vested in the Company as if such lands had been purchased by the Company but the mines had not been expressly purchased. Vesting site of footpath stopped up.

18. The periods now respectively limited for the compulsory purchase of lands for and for the completion of the following Extension of time for purchase of lands

A.D. 1905. works authorised by section 4 of the Act of 1900 (that is to say):—

for and for completion of certain works authorised by Act of 1900.

The widening and improvement (No. 2) of the Company's main line described in subsection (D) of the said section 4; and

The works described in subsection (G) of the said section 4; are hereby extended as follows:—

The period for the compulsory purchase of the said lands for a period of two years from the thirtieth day of July one thousand nine hundred and five;

The period for the completion of the said works for a period of three years from the thirtieth day of July one thousand nine hundred and five.

Extension of time for completion of works at Broxbourne.

19.—(1) The period limited by the Act of 1900 for the completion by the Company and by the two councils of the works authorised by section 7 of that Act is hereby extended for a period of three years from the thirtieth day of July one thousand nine hundred and five.

(2) Section 17 (As to diversion of road at Broxbourne) of the Act of 1900 shall be read and have effect as if the period therein mentioned within which the obligation imposed upon the Hertfordshire County Council should be fulfilled had been eight years from the passing of the Act of 1900 instead of two years from the passing of that Act.

Repeal of existing enactments as to mechanical power on tramways. Provisions as to motive power.

20. Sections 55 to 60 of the Act of 1881 and the Schedule A. to that Act are hereby repealed and the Company shall in working and using the tramways by locomotive engines or other mechanical power be subject to the following provisions (that is to say):—

(A)—(1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade:

(2) The Board of Trade shall make regulations (in this section referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under the Act of 1881 and this Act of mechanical power on the tramways:

(3) The Company or any other company or person using any mechanical power on the tramways contrary to the provisions of this section or of the Board of Trade regulations shall for every such offence be liable to a penalty

not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof: A.D. 1905.

(4) The Board of Trade if they are of opinion—

(A) That the Company or such other company or person have or has made default in complying with the provisions of this section or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or

(B) That the use of mechanical power as authorised under the Act of 1881 and this Act is a danger to the passengers or the public;

may by order either direct the Company or such other company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Company or such other company or person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order:

Provided that the steam power used upon the tramways at the passing of this Act shall for the purposes of this Act be deemed to be mechanical power used with the consent of and according to a system approved by the Board of Trade and that the regulations made by the Board of Trade and in force at the date of the passing of this Act shall unless and until altered varied or revoked by the Board of Trade be deemed to be the Board of Trade regulations.

(B)—In the event of the tramways being worked by the Company by electrical power the following provisions shall apply to the use of such power unless such power is entirely contained in and carried along with the carriages:— Special provisions as to use of electrical power.

(1) The Company shall employ either insulated returns or uninsulated metallic returns of low resistance;

(2) The Company shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working the tramways so as not injuriously to affect by fusion or electrolytic action any gas or water

A.D. 1905.
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pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus;

(3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return;

(4) The Company shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Company either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking;

(5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents;

(6) If any difference arises between the Company and any other party with respect to anything hereinbefore in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to

be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be;

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(7) The expression "Company" in this section shall include lessees licencees and any person owning working or running carriages over the tramways.

(C)—(1) Subject to the provisions of this Act the Board of Trade may make byelaws with regard to the tramways for all or any of the following purposes (that is to say):—

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages;

For regulating the emission of smoke or steam from engines used on the tramways;

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety;

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages;

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways by exhibition of the same in conspicuous places on the carriages and elsewhere:

Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this section shall be liable to a penalty not exceeding forty shillings:

(2) Any byelaws made by the Board of Trade in relation to any of the matters referred to in this section with regard to any of the tramways and in force at the passing of this Act shall be deemed to have been made under this section.

(D)—Any penalty under this section or under any byelaws or regulations made under this section relating to the tramways may be recovered in manner provided by the Summary Jurisdiction Acts.

Recovery of penalties.

A.D. 1905.

Exemption
of tramways
from opera-
tion of sec-
tion 46 of
Tramways
Act 1870 so
far as relates
to rate of
speed.

Orders &c.
of Board of
Trade.

For protec-
tion of Post-
master-
General.

(E)—Notwithstanding anything contained in section 46 of the Tramways Act 1870 no local authority of any district in which the tramways are laid down may make regulations or byelaws as to the rate of speed to be observed in travelling upon the tramways and any regulations or byelaws already made by any such local authority so far as the same relate to the rate of speed as aforesaid shall as from the passing of this Act be null and void.

(F)—All orders regulations and byelaws made by the Board of Trade under the authority of this section shall be signed by a secretary or an assistant secretary of the Board.

21. In the event of the tramways being worked by electricity the following provisions shall have effect:—

- (1) The Company shall construct their electric lines and other works of all descriptions and shall work the tramways in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the tramways to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Company as to compliance with this subsection shall be determined by arbitration:
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Company of their electric lines and works or by the working of the tramways the Company shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection:
- (3) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Company or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General

specifying the course of the line and the nature of the work including the gauge of any wire and the Company and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work. Any difference which arises between the Postmaster-General and the Company as to any requirement so made shall be determined by arbitration:

- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Company is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the Company's works or to the working of the tramways the Engineer-in-Chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Company enter any of the Company's works for the purpose of inspecting the Company's plant and the working of the same and the Company shall in the presence of such Engineer-in-Chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Company pursuant to the Board of Trade regulations:
- (5) In the event of any contravention of or wilful non-compliance with this section by the Company or their agents the Company shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues:
- (6) Provided that nothing in this section shall subject the Company or their agents to a fine under this section if they satisfy the court having cognizance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a

A.D. 1905.

work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice:

- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work:
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act:
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882:
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply:
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Company by indictment action or otherwise in relation to any of the matters aforesaid:
- (12) In this section the expression "the Company" includes their lessees and any person owning working or running carriages on any of the tramways.

Amendment
of section 60
of Act of
1900.

22. Section 60 of the Act of 1900 shall be read as if the words "Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock" had not been inserted in such section and the said section as so modified shall operate as regards mortgages (if any) and debenture stock granted or created and issued by the Company since the passing

of the said Act notwithstanding that notice of the effect of that section may not have been endorsed as thereby required. A.D. 1905. —

23. The Company the Joint Committee and the Great Northern Railway Company may respectively raise and apply for or towards any of the purposes of this Act relating to them respectively to which capital is properly applicable any money which they are respectively authorised to raise by any other Act or Acts and which may not be required for the special purposes (if any) for which that money was authorised to be raised. Power to apply existing funds.

24. Nothing contained in this Act shall extend or operate to authorise the Company to take use enter upon or in any manner interfere with any land soil water or hereditaments or any land parcel of any manor or any manorial rights or any other rights of whatsoever description belonging to His Majesty in right of His Duchy of Lancaster without the consent in writing of the chancellor for the time being of the said duchy first had and obtained (which consent the said chancellor is hereby authorised to give) or take away prejudice or diminish any estate right privilege power or authority vested in or enjoyed or exerciseable by His Majesty His heirs or successors in right of His said duchy. Saving rights of Duchy of Lancaster.

25. Nothing in this Act contained shall exempt the Company or their undertaking from the provisions of any general Act relating to railways or to the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised by any Act relating to the Company. Provision as to general Railway Acts.

26. The costs charges and expenses preliminary to and of and incidental to the preparing and applying for and the obtaining and passing of this Act shall be paid by the Company. Expenses of Act.

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